

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW,
AVERS LOGISTICS LTD,
CJ DELUZ NIGERIA LTD.

Complainants,

vs.

**OPPOSITION TO MOTION
SEEKING DEFAULT**

MARINE TRANSPORT LOGISTICS, INC.,
ALLA SOLOVYEVA,
RAYA BAKHIREV.

Respondents.

The motion for default challenges the verification of the Answer, which was timely filed by the undersigned on behalf of the Respondents on August 27, 2020. 46 C.F.R. §502.6(a) says:

“If a party is represented by an attorney or other person qualified to practice before the Commission under the rules of this part, each pleading, document or other paper of such party filed with the Commission shall be signed by at least one person of record admitted to practice before the Commission in his or her individual name, whose address shall be stated. Except when otherwise specifically provided by rule or statute, such pleading, document or papers *need not be verified or accompanied by affidavit.*” (*emphasis added*).”

In the above-captioned matter, the Answer is dated and signed by the undersigned attorney and is in full compliance with the above-cited regulation and no verification is needed (Exhibit “1”). However, as an additional measure of reliability, two verifications were provided, which it is respectfully being submitted could have been omitted pursuant to the above regulation.

Instead of complying with this Court’s Initial Order of August 7, 2020, Mr. Nussbaum chose to file this frivolous motion to get him an extension of the deadlines contained in such

Order, which if he needed an extension, he could have requested to stipulate to such instead of needlessly delaying these proceedings, and the undersigned would have agreed to such.

For example, the Initial Order required initial disclosures within seven days of filing of the Answer. Mr. Nussbaum submitted such disclosures on September 7 (Attached to this Opposition as Exhibit "2"), which were not timely and were defective for the following reasons: In the documents category, it simply states: "Documents already exchanged between counsel for the parties in this matter." However, 46 C.F.R. §502.141(b)(2) requires "A copy, or a description by category and location." It is not clear to which "exchange" Mr. Nussbaum is referring to or to which documents in particular. Similarly, references to simply "documents" or "records" are vague and do not satisfy the referenced regulation.

The other provision of the Initial Order that Mr. Nussbaum violated was with respect to the requirement that mandated the parties to participate in a preliminary conference with "CADRS" within fifteen days of the service of the respondent's answer.

On September 14, 2020, Philip Lee from "CADRS" emailed Mr. Nussbaum requesting him to contact Mr. Lee regarding a preliminary conference. (Exhibit "3"). Upon information and belief, instead of responding and participating in a Court-ordered conference, Mr. Nussbaum filed this meritless motion, designed to needlessly prolong proceedings, and incur expense.

As a result of the foregoing, it is respectfully being requested that the motion seeking default should be denied, and this case should proceed to a preliminary conference.

Respectfully Submitted,

Dated: September 17, 2020



Garry Pogil, Esq.
1120 Avenue of the Americas, 4th Floor
New York, NY 10036
212-626-6825
Email: garry.pogil@gmail.com

EXHIBIT "1"

171.Denied.

172.Denied.

Respondents explicitly deny all of the assertions and legal conclusions that follow allegation #172, which conclude on page 36 of the verified complaint.

AFFIRMATIVE DEFENSES

1. The complaint fails to state a valid cause of action against the Respondents under the Shipping Act.
2. The relief sought by the Complainants is barred by the doctrine of laches.
3. The relief sought by the Complainants is time-barred by the applicable statute of limitations.
4. The relief sought by the Complainants is barred, in whole or in part, because any damages resulted from the Complainants' own negligence, such as failure to give clear instructions, failure to follow through with the instructions given, failure to pay outstanding charges owed by the Complainants to MTL, and abandonment of the vehicles.
5. Respondents should be awarded attorney fees.

Dated: August 26, 2020

By: Garry Pogil, Esq. 

1120 Avenue of the Americas

4th Floor

New York, NY 10036

212-626-6825

Email: garry.pogil@gmail.com

EXHIBIT "2"

MARCUS A. NUSSBAUM, ESQ.

P.O. Box 245599, Brooklyn, NY 11224

Tel: 201-956-7071 | Fax: 347-572-0439

Email: marcus.nussbaum@gmail.com

Web: www.nussbaumlawfirm.com

Via Email to garry.pogil@gmail.com

September 10, 2020

Garry Pogil, Esq.

1120 Avenue of the Americas, 4th Floor

New York, NY 10036

Re: *Nnabugwu Chinedu Andrew et al. v. Marine Transport Logistics, Inc. et al.*
FMC Docket No.: 20-12

Dear Counsel:

As you are aware, I represent the Complainants in the above referenced matter. You may recall that I wrote to you on September 2, 2020 in a good faith attempt to confer with you on the issue of the defective notarized verifications attached to your clients' Answer to the Complaint in this matter.

I specifically advised you that the notarized verifications are undated and also fail to indicate the place of notarization. I also requested that the corrected verifications be provided by close of business on September 4, 2020. As of the time of this writing, I have not yet received same and accordingly, your clients' Answer is a nullity. While 46 CFR § 502.6 provides for the manner of verification of documents, it does not allow for hybrid notarized documents which are unsworn.

While I still await the service of a Verified Answer in accordance with the format set forth within 46 CFR § 502.6, complainants nevertheless submit the following information below as their Initial Disclosure:

A. INDIVIDUALS LIKELY TO HAVE DISCOVERABLE INFORMATION

Based upon the information known at this time, the following individuals are believed to have personal knowledge of discoverable information that Complainants may use to support their claims and defenses:

- Nnabugwu Chinedu Andrew (Address and phone number on record with respondents)
- Denis Zenkovich (Address and phone number on record with respondents)
- Yury Kuzko (Address and phone number on record with respondents)
- All witnesses identified in respondents' Initial Disclosure

Complainants reserve the right to supplement this list and to use witnesses who are later identified as having discoverable information relevant in this matter and disclosed by Amended Initial Disclosures, Interrogatory Responses, Responses to Document Requests, and other written discovery, or through testimony.

Re: *Nnabugwu Chinedu Andrew et al. v. Marine Transport Logistics, Inc. et al.*
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B. DOCUMENTS

Complainants identify the following documents or categories of documents that contain information they may use to support their allegations:

1. Documents already exchanged between counsel for the parties in in this matter;
2. Documents related to the shipment of cargo, including, but not limited to master bills of lading, house bills of lading, arrival notices and other documents filed with domestic and foreign customs and other government authorities;
3. Records kept by complainants in the normal course of business;
4. All documents identified in respondents' Initial Disclosure.

C. DAMAGES

Complainants damages include the following:

- All damages identified in detail in the Complaint filed in this matter.
- Attorneys' fees in an amount to be determined by the Commission.

Very truly yours,

/s Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.

EXHIBIT "3"

From: Philip Lee <Plee@FMC.gov>
Sent: Monday, September 14, 2020 9:18 AM
To: Marcus Nussbaum; Garry Pogil
Cc: Zoraya B. De La Cruz
Subject: RE: FMC Docket No.: 20-12
Attachments: Verified Complaint.pdf; Verified Answer.pdf

Dear Mr. Nussbaum,

My apologies for any confusion my last e-mail may have caused. Rather than contacting Ms. De La Cruz, please contact me directly regarding a preliminary conference as I will be handling any potential mediations in connection with this case.

Thank you for your attention to this matter.

Regards,

Philip Lee
Office of Consumer Affairs
& Dispute Resolution Services
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573
(t) 202.523.5822
(f) 202.275.0059

All matters discussed with CADRS staff are confidential and subject to the same confidentiality provisions as administrative dispute resolutions pursuant to 5 U.S.C. 574. Except as specifically set forth in 5 U.S.C. 574, neither CADRS staff nor the parties to a dispute resolution proceeding before CADRS shall disclose any informal dispute resolution communication.

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From: Philip Lee
Sent: Monday, September 14, 2020 8:47 AM
To: Marcus Nussbaum <marcus.nussbaum@gmail.com>; Garry Pogil <garry.pogil@gmail.com>
Cc: Zoraya B. De La Cruz <zdelacruz@fmc.gov>
Subject: RE: FMC Docket No.: 20-12

Dear Mr. Nussbaum,

Thank you for contacting the Office of Consumer Affairs & Dispute Resolution Services ("CADRS"). I am the current Acting Director of CADRS and I attempted to call you earlier this morning regarding your below e-mail, but was unable to reach you.

We have copies of the verified complaint and answer that were filed in connection with Docket No. 20-12, and we acknowledge your request to schedule a preliminary conference. Unfortunately, given the short notice, Ms. De La Cruz will not be able to conduct a preliminary conference later this morning.

Please follow up directly with Ms. De La Cruz, who is reading in copy, to reschedule. If you have any questions or concerns, please let us know. Thank you for your attention to this matter.

Regards,

Philip Lee
Office of Consumer Affairs
& Dispute Resolution Services
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573
(t) 202.523.5822
(f) 202.275.0059

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From: Marcus Nussbaum <marcus.nussbaum@gmail.com>

Sent: Friday, September 11, 2020 2:57 PM

To: Zoraya B. De La Cruz <zdelacruz@fmc.gov>

Cc: Garry Pogil <garry.pogil@gmail.com>

Subject: FMC Docket No.: 20-12

Dear Ms. De La Cruz,

I represent the Complainants in the above referenced matter. Counsel for Respondents is copied on this email.

I am following up with a voicemail I left at the office of CADRS this afternoon to schedule a Preliminary Conference and to inquire as to your office's availability for same.

After conferring with counsel, the parties are available on September 14, 2020 between 9:00 a.m. and 12:00 p.m.

Would it be possible to schedule a conference during that time?

Regards,

Marcus A. Nussbaum, Esq.

Fishkin, Gurshumov & Nussbaum

3059 Brighton 7th St. NY 11235

Tel: 201-956-7071

Fax: 718-509-0580

<https://fgnlawfirm.com/>

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